



CHAPTER cxxvii.

An Act to confirm certain Provisional Orders of the A.D. 1912.
Local Government Board relating to Buxton Cleethorpe
with Thrunscoe Derby Leicester and Middleton.
[7th August 1912.]

WHEREAS the Local Government Board have made the
Provisional Orders set forth in the schedule hereto under
the provisions of the Public Health Act 1875 :

38 & 39 Vict.
c. 55.

And whereas it is requisite that the said Orders should be
confirmed by Parliament:

Be it therefore enacted by the King's most Excellent Majesty
by and with the advice and consent of the Lords Spiritual and
Temporal and Commons in this present Parliament assembled
and by the authority of the same as follows:—

1. The Orders set out in the schedule hereto shall be and Orders in
the same are hereby confirmed and all the provisions thereof schedule
shall have full validity and force. confirmed.

2. This Act may be cited as the Local Government Board's Short title.
Provisional Orders Confirmation (No. 1) Act 1912.

A.D. 1912.

S C H E D U L E.

URBAN DISTRICT OF BUXTON.

*Buxton
Order.*

*Provisional Order for altering the Buxton Gas Act 1870
and the Buxton Local Board Act 1873.*

To the Urban District Council of Buxton ; —

To the Rural District Council of Chapel-en-le-Frith ; —

And to all others whom it may concern.

WHEREAS the Urban District Council of Buxton (herein-after referred to as "the Council") are the local authority within the meaning of the Public Health Act 1875 for the Urban District of Buxton (herein-after referred to as "the District");

33 & 34 Vict.
c. lxviii.
36 Vict.
c. lvi.

And whereas there are in force in the District the unrepealed provisions of the Buxton Gas Act 1870 (herein-after referred to as "the Act of 1870") and the Buxton Local Board Act 1873 (which Acts are herein-after together referred to as "the Local Acts") as altered by certain Provisional Orders duly confirmed by Parliament which do not affect the subject-matter of this Order ;

1 & 2 Geo. 5.
c. lxvi.

And whereas by the Local Acts the Buxton Local Board who were the predecessors of the Council were authorised to supply gas within the limits defined by Section 42 of the Act of 1870 and those limits as so defined were altered by Section 5 of the Chapel Whaley and District Gas Act 1911 (which limits as so altered are herein-after referred to as "the gas limits") ;

And whereas the Council have made application to the Local Government Board for the issue of a Provisional Order to alter or amend the Local Acts as altered as aforesaid in the manner herein-after set forth :

38 & 39 Vict.
c. 55.

Now therefore We the Local Government Board in pursuance of the powers given to Us by Section 303 of the Public Health Act 1875 and by any other Statutes in that behalf do hereby order that from

[2 & 3 GEO. 5.] *Local Government Board's* [Ch. cxxvii.]
Provisional Orders Confirmation (No. 1) Act, 1912.

and after the date of the Act of Parliament confirming this Order the Local Acts as altered as aforesaid shall be further altered so that the following provisions shall take effect that is to say :—

A.D. 1912.

*Buxton
Order.*

Art. I. The gas limits shall be extended so as to comprise the area described in the Schedule to this Order and the provisions of the Local Acts as altered as aforesaid with respect to the supply of gas and otherwise with respect to gas purposes which now apply and have effect within the existing gas limits shall with the necessary modifications apply and have effect within the gas limits as extended by this Order.

Extension of
gas limits.

Art. II. This Order may be cited as the Buxton Order 1912.

Short title.

The SCHEDULE above referred to.

All that portion of the Parish of Fernilee in the Rural District of Chapel-en-le-Frith and the County of Derby lying to the south and east of an imaginary line drawn due south from the three-mile stone on the Buxton Main Road to the boundary of the said Parish and due north from the said mile stone to the Bridle Road leading from Bunsal Farm and Nook Farm to White Hall and thence in an easterly direction along the centre of the said Bridle Road and the Carriage Road to White Hall to the boundary of the said Parish.

Given under the Seal of Office of the Local Government Board
this Ninth day of March One thousand nine hundred and
twelve.

(L.S.)

JOHN BURNS President.

H. C. MONRO Secretary.

URBAN DISTRICT OF
CLEETHORPE WITH THRUNSCOE.

*Provisional Order for altering the Cleethorpes
Improvement Act 1902.*

*Cleethorpe
with Thrun-
scoe Order.*

To the Urban District Council of Cleethorpe with Thrunscoe;—

And to all others whom it may concern.

WHEREAS the Urban District Council of Cleethorpe with Thrunscoe (herein-after referred to as "the Council") are the local authority within the meaning of the Public Health Act 1875 for the Urban District of

[Ch. cxxvii.] *Local Government Board's* [2 & 3 GEO. 5.]
Provisional Orders Confirmation (No. 1) Act, 1912.

A.D. 1912. Cleethorpe with Thrunscoe (herein-after referred to as "the District")
Cleethorpe and the unrepealed provisions of the Cleethorpes Improvement Act
with Thruns- 1902 (herein-after referred to as "the Local Act") are in force in the
coe Order. District;

2 Edw. 7.
c. cliv.

And whereas by Section 62 of the Local Act and subject as therein provided the agreement dated the Ninth day of April One thousand nine hundred and two and made between the Master Fellows and Scholars of the College of the Lady Frances Sidney Sussex in the University of Cambridge (herein-after referred to as "the College") of the one part and the Council of the other part as set forth in the Third Schedule to the Local Act was confirmed and made binding on the parties thereto;

And whereas by Section 63 of the Local Act the Council were required to maintain for ever as recreation grounds the lands acquired by them under the said agreement and delineated on the plan referred to in the said Section;

And whereas the Council propose to use the land described in the Schedule to this Order (herein-after referred to as "the scheduled land") being part of the lands so acquired by them for the purpose of constructing and maintaining a pumping station storage tank and other works for the purpose of receiving pumping storing and discharging sewage and storm water;

And whereas the Council have made application to the Local Government Board for the issue of a Provisional Order to alter or amend the Local Act in the manner herein-after set forth:

38 & 39 Vict.
c. 55.

Now therefore We the Local Government Board in pursuance of the powers given to Us by Section 303 of the Public Health Act 1875 and by any other Statutes in that behalf do hereby order that from and after the date of the Act of Parliament confirming this Order the Local Act shall be altered so that the following provisions shall take effect that is to say:—

Use of land
for sewage
purposes.

Art. I. Notwithstanding anything contained in Section 62 of the Local Act or in the agreement confirmed thereby or in Section 63 of the said Act the Council may by agreement in writing with the College use the scheduled land for the purpose of constructing and maintaining a pumping station storage tank and other works for the purpose of receiving pumping storing and discharging sewage and storm water.

Short title.

Art. II. This Order may be cited as the Cleethorpe with Thrunscoe Order 1912.

[2 & 3 GEO. 5.] *Local Government Board's* [Ch. cxxvii.]
Provisional Orders Confirmation (No. 1) Act, 1912.

The SCHEDULE above referred to.

A.D. 1912.

*Gleethorpe
with Thrums-
coe Order.*

All that triangular plot of land situated within the District and containing by admeasurement six acres one rood twenty perches or thereabouts of which the base is coincident with that part of the southern boundary of the District which extends in a north-easterly direction to a point (herein-after referred to as "Point A") distant fourteen and a half chains or thereabouts from the point (herein-after referred to as "Point B") where the said boundary intersects the fence running in a south-easterly direction from the rear of the Royal Naval Reserve Battery and the apex is at the point distant eleven chains or thereabouts measured in a north-westerly direction from Point A and eleven and three-quarter chains or thereabouts measured in a north-easterly direction from Point B.

Given under the Seal of Office of the Local Government Board
this Twelfth day of March One thousand nine hundred and
twelve.

(L.S.)

JOHN BURNS President.

H. C. MONRO Secretary.

BOROUGH OF DERBY.

*Provisional Order to enable the Urban Sanitary Authority
for the Borough of Derby to put in force the Compulsory
Clauses of the Lands Clauses Acts.* *Derby Order.*

To the Mayor Aldermen and Burgesses of the Borough of
Derby;—

And to all others whom it may concern.

WHEREAS the Mayor Aldermen and Burgesses of the Borough of Derby acting by the council as the Urban Sanitary Authority for that Borough (herein-after referred to as "the Corporation") require to purchase and take the lands described in the schedule hereto for the purpose of widening opening enlarging or otherwise improving the streets called London Road and Osmaston Road:

Now therefore We the Local Government Board in pursuance of the powers given to Us by Section 176 of the Public Health Act 1875 38 & 39 Vict. and by any other Statutes in that behalf do hereby order that from c. 55.

[Ch. cxxvii.] *Local Government Board's* [2 & 3 GEO. 5.]
Provisional Orders Confirmation (No. 1) Act, 1912.

A.D. 1912. and after the date of the Act of Parliament confirming this Order the
Derby Order. following provisions shall have effect that is to say:—

Compulsory Art. I. The Corporation shall be empowered to put in force with
powers of reference to the lands described in the schedule hereto and for the
purchase. purpose aforesaid the powers of the Lands Clauses Acts with respect
to the purchase and taking of lands otherwise than by agreement or
any of them.

Short title. Art. II. This Order may be cited as the *Derby Order 1912.*

The SCHEDULE above referred to.

Borough of DERBY.

Nos. on deposited Plans.	Description of Lands.	Owners or reputed Owners.	Lessees or reputed Lessees.	Occupiers.
1	House and shop and premises 12 London Road.	The Corporation -	Derby Fur- nishing Stores Limited.	Derby Furnishing Stores Limited.
2	House and shop and premises 10 London Road.	Ditto . . .	Ditto . . .	Ditto.
3	House and shop and premises 8 London Road.	Ditto . . .	Thomas Shep- pard.	Thomas Sheppard.
4	Passage and house and shop and pre- mises 7 Osmaston Road.	The Executors of the Will of John Marples deceased namely Sarah Marples Frede- rick Marples.	—	—
5	House and shop and premises 9 Osmaston Road.	Ditto . . .	- . . .	Sarah Elizabeth Henson.
6	House and shop and premises 11 Osmaston Road.	Arthur Cade Bem- rose.	Henry James Hitchcock.	Henry James Hitchcock.
7	House and inn and premises 13 Os- maston Road.	Marston Thomp- son and Evershed Limited.	—	—
8	House and shop and premises 15 Osmaston Road.	Charles McCann -	- . . .	Charles McCann.
9	House and shop and premises 17 Osmaston Road.	Ditto . . .	- . . .	Ditto.

[2 & 3 GEO. 5.] *Local Government Board's* [Ch. cxxvii.]
Provisional Orders Confirmation (No. 1) Act, 1912.

Nos. on deposited Plans.	Description of Lands.	Owners or reputed Owners.	Lessees or reputed Lessees.	Occupiers.	A.D. 1912. Derby Order.
10	Entry between 17 and 19 Osmaston Road and open entry at rear of 15 and 17 Osmaston Road.	Charles McCann the Executors of the Will of John Marples deceased (as before) Arthur Cade Bemrose Marston Thompson and Evershed Limited Elizabeth Bemrose the Executors of the Will of John Richardson deceased namely William Flint Fritchley John Gadsby Fritchley Annie Fritchley the Corporation.	Henry James Hitchcock.	Henry James Hitchcock Charles McCann William Henry Ratcliffe Edith Adams Robert Frank Jolly William Hickman Francis Charles Crowley Frederick William Rose Alfred Thompson Thomas Sheppard Derby Furnishing Stores Limited.	
11	Entry at rear of 13 Osmaston Road.	Marston Thompson and Evershed Limited the Executors of the Will of John Marples deceased (as before) Arthur Cade Bemrose the Corporation.	Ditto	Sarah Elizabeth Henson Henry James Hitchcock Thomas Sheppard.	
12	Entry at rear of 11 Osmaston Road.	Arthur Cade Bemrose the Executors of the Will of John Marples deceased (as before).	Ditto	Henry James Hitchcock Sarah Elizabeth Henson.	
13	Forecourt 9 London Road.	The Executors of the Will of John Eaton deceased namely John Dickinson Eaton Herbert Henri Eaton William Dust.	Ada Burton	Ada Burton.	

The Lords of the Manor—The Mayor Aldermen and Burgesses of the Borough of Derby.

Given under the Seal of Office of the Local Government Board
this First day of March One thousand nine hundred and
twelve.

(L.S.)

JOHN BURNS President.
H. C. MONRO Secretary.

A.D. 1912.

BOROUGH OF LEICESTER.

*Leicester
Order.*

*Provisional Order to enable the Urban Sanitary Authority for
the Borough of Leicester to put in force the Compulsory
Clauses of the Lands Clauses Acts.*

To the Mayor Aldermen and Burgesses of the Borough of
Leicester ;—

And to all others whom it may concern.

WHEREAS the Mayor Aldermen and Burgesses of the Borough of
Leicester acting by the Council as the Urban Sanitary Authority for
that Borough (herein-after referred to as "the Corporation") require
to purchase and take the lands described in the schedule hereto for
the purpose of widening opening enlarging or otherwise improving the
street called London Road :

38 & 39 Vict.
c. 55. Now therefore We the Local Government Board in pursuance of
the powers given to Us by Section 176 of the Public Health Act 1875
and by any other Statutes in that behalf do hereby order that from
and after the date of the Act of Parliament confirming this Order the
following provisions shall have effect that is to say :—

Compulsory
powers of
purchase.

Art. I. The Corporation shall be empowered to put in force with
reference to the lands described in the schedule hereto and for the
purpose aforesaid the powers of the Lands Clauses Acts with respect
to the purchase and taking of lands otherwise than by agreement or
any of them.

Short title.

Art. II. This Order may be cited as the Leicester Order 1912.

[2 & 3 GEO. 5.] *Local Government Board's* [Ch. cxxvii.]
Provisional Orders Confirmation (No. 1) Act, 1912.

The SCHEDULE above referred to.

A.D. 1912.
Leicester
Order.

Borough of LEICESTER.

Nos. on deposited Plans.	Description of Lands.	Owners or reputed Owners.	Lessees or reputed Lessees.	Occupiers.
1	Shop dwelling-house yard and outbuildings.	Harry Caswell Browning.	- - - -	Harry Caswell Browning Charles Frederick Lord.
2	Ditto - -	Martha Jane Alloway.	- - - -	Edwin Osborne.
3	Shop with rooms over yard and outbuildings.	Ditto -	Frederick Burgess Alloway and Sidney Alloway (trading as F. and S. Alloway).	F. and S. Alloway.

Given under the Seal of Office of the Local Government Board
this Second day of March One thousand nine hundred and
twelve.

(L.S.)

JOHN BURNS President.
H. C. MONRO Secretary.

BOROUGH OF MIDDLETON.

Provisional Order for altering the Middleton Corporation
Act 1910.

Middleton
Order.

To the Mayor Aldermen and Burgesses of the Borough of
Middleton ;—

And to all others whom it may concern.

WHEREAS the Borough of Middleton (herein-after referred to as "the
Borough") is an Urban District of which the Mayor Aldermen and
Burgesses acting by the Council (herein-after referred to as "the
Corporation") are the Urban District Council and the local authority
within the meaning of the Public Health Act 1875 and the Middleton
Corporation Act 1910 (herein-after referred to as "the Local Act") is
in force in the Borough ;

10 Edw. 7 &
1 Geo. 5.
c. cxxx.

[Ch. cxxvii.] *Local Government Board's* [2 & 3 GEO. 5.]
Provisional Orders Confirmation (No. 1) Act, 1912.

A.D. 1912.

*Middleton
Order*

And whereas by Section 123 of the Local Act provision is made with respect to the assessment and recovery of all poor rates made assessed and levied in respect of properties within the Borough and it is provided that nothing in the said section shall be deemed to repeal exclude or affect any allowance deduction or exemption (partial or otherwise) applicable to the poor rate by virtue of the provisions of section one of the Agricultural Rates Act 1896 section two of the Poor Rate Assessment and Collection Act 1869 and section eleven of the Poor Relief Act 1814 ;

And whereas the Corporation have made application to the Local Government Board for the issue of a Provisional Order to alter or amend the Local Act in the manner herein-after set forth :

38 & 39 Vict.
c. 55.

Now therefore We the Local Government Board in pursuance of the powers given to Us by Section 303 of the Public Health Act 1875 and by any other Statutes in that behalf do hereby order that from and after the date of the Act of Parliament confirming this Order the Local Act shall be altered so that the following provisions shall take effect that is to say :—

Poor rate to be
assessed and
levied subject
to certain pro-
visions of the
Poor Rate Assess-
ment and Collec-
tion Act 1869.

Art. I. Section 123 of the Local Act shall have effect as if for the words "section two of the Poor Rate Assessment and Collection Act 1869" there were substituted the words "sections two three and four of the Poor Rate Assessment and Collection Act 1869."

Short title.

Art. II. This Order may be cited as the Middleton Order 1911.

Given under the Seal of Office of the Local Government Board
this Fourth day of July One thousand nine hundred and
eleven.

(L.S.)

JOHN BURNS President.

H. C. MONRO Secretary.

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